MTHUNZI SIBANDA
versus
ARCHIBALD TSANGA
and
RONALD KUNYANGWE
and
THE OFFICER IN CHARGE CID VEHICLE THEFT SQUAD HARARE N.O.

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 20 March & 7 April 2026

Opposed Application: Ruling on Preliminary Point

N Ncube, for the applicant
K Manyeruke, for the 2nd respondent
No appearance for the 1st and 3rd respondents

DEMBURE J:

The applicant approached this court for a mandatory interdict commonly referred to as a *mandamus*. He seeks an order compelling the third respondent to release a motor vehicle registration number ADS 5756, which is in the custody of the Zimbabwe Republic Police (*"the Police"*). The application was opposed by the second respondent. The applicant raised a point *in limine* that the second respondent's opposing affidavit is fatally defective and, therefore, the application ought to be granted as unopposed. On 20 March 2026, the respective parties' legal practitioners made oral submissions on the preliminary point, and I reserved judgment *sine die*.

FACTUAL BACKGROUND

The parties' dispute is centred on a motor vehicle registration number ADS 5756, which is currently in the custody of the Police. The applicant averred that he is the rightful owner of the said motor vehicle, which he purchased from its previous owner, one Victor T Mhirimo, for the sum of US$5,000.00. He further alleged that he had given custody of the motor vehicle to the first respondent to facilitate the acquisition, on his behalf, of a certificate of fitness from the Vehicle Inspectorate Department. The vehicle was allegedly sold by the first respondent to the

second respondent on 5 May 2024. It was alleged that the sale was unlawful as it was made by a non-owner and without the applicant's consent.

There is a Deed of Settlement signed by the applicant and the first respondent, in which the first respondent undertook to replace the said motor vehicle or, alternatively, to pay the applicant the sum of US$10,000.00. The applicant cancelled the Deed of Settlement due to a breach of its terms. On 18 August 2025, the Magistrates' Court issued an order confirming the cancellation of the Deed of settlement entered into on 8 August 2024 between the applicant and the first respondent, with no order as to costs. The applicant reported a case of motor vehicle theft to the Police, resulting in the vehicle being recovered from the second respondent. The applicant sought an order for its release to him as the owner of the vehicle.

The second respondent, on the other hand, claimed that he is the owner of the vehicle after he purchased it from the first respondent. That he paid the full purchase price thereof and had been in possession of the vehicle since May 2024, using it as his own. It was also contended that by signing the Deed of Settlement, the applicant had relinquished any rights he had over the motor vehicle and that he should pursue his legal remedies, if any, against the first respondent. He further contended that the vehicle should be released to him as the owner and as the one who had previously been in possession of it, following the completion of the police investigations.

In the answering affidavit, the applicant raised a point *in limine* that the second respondent's opposing affidavit was fatally defective because the commissioner of oaths did not endorse the date on which the oath was administered. To that extent, the application was unopposed and ought to be granted. The point was further motivated by the applicant's counsel at the hearing.

ORAL SUBMISSIONS MADE

Mr *Ncube* submitted that the second respondent's opposing affidavit is fatally defective as it does not have a date when the commissioner of oaths administered the oath. See p 39 of the record. He argued that there must be two similar dates: the date when the deponent appeared before the commissioner of oaths and the date when the commissioner of oaths administered the oath. The requirement is meant to show that the acts were done contemporaneously.

Counsel further argued that there is a recent judgment by KABASA J, which held that there are supposed to be two dates. This was in the case of *Darcal (Pvt) Ltd v Minister of Lands, Agriculture, Fisheries, Water and Rural Development N.O. & Ors* HB 19/26. In that case, it was held that to confirm that the oath was taken in the presence of the deponent and the commissioner of oaths, there must be two dates, one for the deponent and the other by the Commissioner indicating when the oath was administered. The application was struck off the roll for non-compliance with that requirement.

I was also referred to the case of *Sheng An Mining (Pvt) Ltd* v *Mohamed Daka* HB 65/24. It was argued that similar sentiments were expressed, and the court struck out the opposing affidavit. When I invited counsel to comment on the decision in *Mandishayika* v *Sithole* HH 798/15, which defined what constitutes a valid affidavit, he argued that the decision in *Sheng An Mining* is a judgment by two judges. A perusal of the said judgment does not support this position, though. Counsel argued that the court must stand by the said decisions and strike out the opposing affidavit. Without a valid opposing affidavit, there is no opposition before the court. It was prayed that the court ought to grant the application in terms of the draft order.

Conversely, Mr *Manyeruke* submitted that he strongly opposed the point *in limine*. He argued that the date on which the oath was administered is clearly stated. It is the 7th of October 2025. The affidavit was properly commissioned. There are many judgments on the commissioning of affidavits. See *Twin Castle Resources (Pvt) Ltd v Paari Mining Syndicate & Ors* HH 153/21, which quoted the judgment of *Mandishayika* v *Sithole* on what constitutes an affidavit.

Counsel further argued that what is happening contemporaneously is the taking and administration of the oath. The deponent simply raise his hand and sign the affidavit. The commissioner of oaths has to take the oath and endorse the date. This was properly done as shown at p 39. Once there is a Supreme Court judgment in *Ariston Management Services v Econet Wireless Zimbabwe* Ltd, SC 123/23, it will be binding on this court.

APPLICATION OF THE LAW TO THE FACTS

The law is now settled as to what constitutes a valid affidavit. The law was enunciated in *Mandishayika v Sithole* (*supra*) where CHITAKUNYE J (as he then was) said:

> "An affidavit is a written statement made on oath before a commissioner of oaths or other person authorised to administer oaths. The deponent to the statement must take the oath in the presence of the commissioner of oaths and must append his or her signature to the document in the presence of such commissioner. Equally the commissioner must administer the oath in accordance with the law and thereafter must append his or her signature onto the statement in the presence of the deponent. The commissioner must also endorse the date on which the oath was so administered. These acts must occur contemporaneously." (*my emphasis*)

The judgment in *Mandishayika* (*supra*) is a judgment by two judges and, therefore, binds me. It was also confirmed to be correct by the Supreme Court in *Ariston Management Services* (*supra*), where MATHONSI JA had this to say:

> "In the *Mandishay[ika]* case, the court remarked that the deponent of an affidavit must take the oath in the presence of the Commissioner. Equally, the Commissioner must append his or her signature on the statement in the presence of the deponent. The court went on to say that the Commissioner must also endorse the date on which the oath was administered and that those acts must occur contemporaneously.
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> The reason behind that requirement is for the court to be satisfied that the oath was administered at a given date in the presence of both the deponent and the Commissioner. Without the date, the court may never be able to ascertain if the oath was properly administered in accordance with the law.
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> The court *a quo* was bound by the *Mandishay[ika]* judgment being a judgment of the two Judges. Even though the issue was not argued *a quo*, it could be raised for the first time on appeal as it is a point of law. We do not agree with Mr *Magwaliba* for the appellant, with his argument that the judgment was wrongly decided." (*my emphasis*)

The court in the *Ariston Management Services* case (*supra*) emphasised the importance of the date. It further affirmed that the commissioner of oaths must endorse the date on which the oath was taken. To the extent that, in that case, there was no such date or the affidavit was undated, it rendered the purported founding affidavit and consequently the application for setting aside the arbitration award a nullity.

The decision in *Ariston Management Services* (*supra*), though it was overturned by the Constitutional Court for different reasons, was recently endorsed by the Supreme Court in *Cosmas Nyamutswa* v *Caecelia Nyamutswa* SC 29/26 at para 22, where MATHONSI JA held that:

> "There is authority for the proposition that a Commissioner of Oaths before whom an oath is taken is required to endorse the date on which the oath was administered in order to satisfy the court that both the deponent and the Commissioner acted contemporaneously. See *Mandishayika v Sithole* HH 798/15, a decision endorsed by this Court in *Ariston Management Services (Pvt) Ltd*

> *v Econet Wireless Zimbabwe Ltd* SC 123/23. I should mention though, that the *Ariston* judgment was set aside by the Constitutional Court in *Ariston Management Services Ltd v Econet Wireless Zimbabwe Ltd & Anor CCZ 8/24* for different reasons." (*my emphasis*)

The Supreme Court has made it clear that the date must be endorsed by a commissioner of oaths. That shows that both the deponent and the commissioner acted contemporaneously. It is settled law that once the Supreme Court has spoken, its position on non-constitutional matters is final, correct, and must be followed by this court. This is part of the principle of *stare decisis*. See *Lytton Investments (Pvt) Ltd* v *Standard Chartered Bank Zimbabwe Ltd & Anor* CCZ 11/18. The principle was further restated in *Shah* v *Nherera* SC 55/24, where CHATUKUTA JA (as she then was) held as follows:

> "26. The Supreme Court had spoken. Decisions of this Court are absolute as the Supreme Court is the final court of appeal in all matters, except in matters of a constitutional nature. The court in *Kasukuwere* v *Mangwana* SC 78/23, at p 17, quoted with approval the case of *Lytton Investments (Pvt) Ltd v Standard Chartered Bank Zimbabwe Limited & Anor* 2018 (2) ZLR 743 (CCZ) at 757 A wherein it was held that:
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> > "What is clear is that the purpose of the principle of finality of decisions of the Supreme Court on all non-constitutional matters is to bring to an end the litigation on the non-constitutional matters. A decision of the Supreme Court on a non-constitutional matter is part of the litigation process. The decision is therefore correct because it is final. It is not final because it is correct.
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> > The correctness of the decision at law is determined by the legal status of finality. The question of the wrongness of the decision would not arise. There cannot be a wrong decision of the Supreme Court on a non-constitutional matter."
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> 27. The Supreme Court decision, being final was correct. Because of the principle of *stare decisis*, the decision was binding on the court *a quo*. The principle of *stare decisis* is that a lower court cannot depart from findings on questions of fact and law made by a superior court. *See Denhere* v *Denhere & Anor* CCZ 9/19, *Diana Farm (Pvt) Ltd* v *Madondo NO & Anor* 1998 (2) ZLR 410 (H)." (*my emphasis*)

The law, as set out in *Mandishayika* and further endorsed in *Nyamutswa*, in respect of the requirement that the commissioner of oaths must endorse the date on which the oath is administered before him or her, is settled. This court cannot deviate from the law settled by the Supreme Court. It is bound to follow those authorities. In my view, there ought to be no debate at all on this. It is also trite that this court generally follows its previous decisions. However, only the decision of two judges of this court sitting together in a matter is binding on a single judge.

The court may depart from its own previous decisions, in particular that of a single judge where the court is of the view that the decision does not correctly reflect the position of the law or is clearly wrong: See *R* v *Faithfull and Gray* 1907 TS 1081; *Fellner* v *Minister of Interior* 1954 (4) SA 523 (A) at 542B and *National Clemsearch (SA)* v *Borrowman & Anor* 1979(3) SA 1092(T) at 1101. In *R* v *Faithfull & Gray* (*supra*), SOLOMON J stated that:

> "Of course, in ordinary circumstances, the court will abide by its decisions; *stare decisis* is a good rule to follow. But where a court is satisfied that its previous decision was wrong, and more particularly where the point was not argued, then I think it is not only competent for the court, but it is its duty in such a case not to abide by its previous decision, but to overrule it." (*my emphasis*)

Mr *Ncube* referred me to the cases of *Darcal (Pvt) Ltd* and *Sheng An Mining* to support his argument. KABASA J in the *Darcal (Pvt) Ltd* case referred to the judgment by DUBE-BANDA J in *Sheng An Mining*. However, it is incorrect to say that the decision in *Sheng An Mining* was made by two judges. A clear perusal of that judgment would show that it was a judgment by a single judge, that is, DUBE-BANDA J. In the *Sheng An Mining* case, DUBE BANDA J correctly recited the law as enunciated in the *Mandishayika* case and at p 3 said:

> [7] What comes out of precedent is that an affidavit must have a date on which the oath was administered. It is insufficient that the affidavit might have a date on which the deponent signed it. See *Ndoro & Anor v Conjugal Enterprises (Private) Limited & Anor* HH 814/22; *State v Hurle & Others* (2) 1998(2) ZLR 42.
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> [8] In *casu* the commissioner of oaths is clearly identifiable. See *Firstel Cellular (Pvt) Ltd v NetOne Cellular (Pvt) Ltd* S-1-15. But he did not endorse the date on which he administered the oath on the deponent. This is not a matter of formalism or of placing form of substance. It is matter of law and this court is bound by precedent. Precedent is clear that such an affidavit is defective, and without an opposing affidavit there is no notice of opposition. See *Twin Castle Resources (Pvt) Ltd v Paari Mining Syndicate and Ors* HH 153/21. The point *in limine* regarding the defective opposing affidavit and that there was no valid notice of opposition has merit and is upheld."

The issue, clearly, in the *Sheng An Mining* case was the absence of the date on which the oath was administered. The court did not prescribe that there must exist two dates. There cannot be two dates at all. The oath is taken before the commissioner of oaths. In other words, he or she is the one who administers the oath. The deponent appears before him or her and takes that oath. The deponent thus signs the affidavit in the presence of the commissioner of oaths, who then signs the same. The commissioner then endorse the date when the oath was taken. All these acts

are what are required to be done contemporaneously. Thus, in *S* v *Hurle & Ors (2*) 1998(2) ZLR 42, the court, on what is expected in commissioning a document, stated that:

> "A justice of the peace, or a commissioner of oaths, called upon to attest a document, has a duty, exemplified by the solemnity of the oath he is permitted to administer. He is obliged, without fail, to have the deponent appear before him. He has no excuse for not administering the oath, for not calling upon the deponent to swear that the deposition is, to the best of his knowledge true in every respect. A deponent's signature has to be affixed in the presence of the commissioner. The commissioner's own signature is an assurance that all these procedures have been complied with."

As stated in *Mandishayika*, it is the commissioner of oaths who must endorse the date on which the oath was so administered. There is no room for two dates here. There is nothing in our law requiring the deponent to insert another date when he signs the oath. I do not, therefore, agree with the conclusion reached in *Darcal (Pvt) Ltd* by KABASA J, who interpreted the cases of *Sheng An Mining*, *Mandishayika*, and *Ariston Management Services* as requiring a second date for the deponent taking the oath. At pp 4-5, she concluded:

> "It is important to note that the *Econet* case (*supra*) speaks to the contemporaneity of the actions and the need for the court to be able to ascertain that such actions were done on the same date and time. The principle therein is what is important and not arguing the matter on the basis of the facts of a particular matter. The point therefore is not that each case must be considered on its own particular circumstances but that the contemporaneous action must be easily ascertainable.
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> Counsel further contended that a litigant who questions the contemporaneity must adduce evidence to prove the lack of contemporaneity. What evidence can possibly be led when the affidavit or purported affidavit speaks for itself? The one who says there was contemporaneity must be the one to show that there was such contemporaneity. How such a litigant does that is not an issue I need detain myself on.
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> That said, I am persuaded by counsel for the respondent's submissions. The absence of the date on which the oath was administered, which date ought to have been reflected on the Commissioner's signature fails to show that the deponent took the oath on the date the Commissioner administered such oath. The contemporaneity is not ascertainable and the respondents are within their rights to question the validity of the application in light of the malady afflicting the founding affidavit."

The opinion in *Darcal (Pvt) Ltd* that there must be two dates to show that the oath was administered on the date the deponent took it cannot be correct. As already alluded to above, it is the commissioner who administers the oath. He is the one required by law to endorse the date on which the oath was administered. The presence of that date endorsed by the commissioner of

oaths is what should satisfy the court that both the deponent and the commissioner of oaths acted contemporaneously. That would satisfy the legal requirements of an affidavit, as clearly set out in *Mandishayika*. There is no further requirement in our law for two dates, as only the commissioner of oaths is legally required to endorse the date on which the oath was administered. I, therefore, cannot follow the decision in *Darcal (Pvt)* Ltd, as the decision, with respect, does not correctly represent our current law.

I associate myself with the remarks by MPOKISENG DUBE J in *G & G Preserves (Pvt) Ltd t/a G & G Property Developers* v *Themba Sibanda t/a Bit Resources PBC Quary Mine & Anor* HB 221/25 at p 3, wherein, when dismissing the same point that there must be two dates, said:

> "I dismissed the preliminary points off hand as they lack merit. There is no law in our jurisdiction seeking two dates for the contemporaneity execution of solemnities. Our law does not require the commissioner of oaths to execute a certificate of how he administered the solemnities." (*my emphasis*)

It is apparent from p 39 of the record that a date is endorsed in black ink, the same ink used by the commissioner of oaths when he signed the affidavit. The date is the 7th of October 2025. That suffices for a valid affidavit. The single date shows that the oath was administered on that particular date by Gilbert Majirija, who endorsed it. Both the deponent and the commissioner signed the affidavit, and the stamp shows the capacity or office in terms of which the commissioner acted as such. It is stated that he is a legal practitioner who, by law, is an *ex officio* commissioner of oaths. No other date is required in terms of the law. The affidavit was properly commissioned. The affidavit is, therefore, manifestly impervious to any challenge.

I find the affidavit by the second respondent to be valid. The point *in limine* raised cannot succeed. The hearing ought to proceed accordingly.

In the result, it is ordered that:

1. The point *in limine* raised by the applicant be and is hereby dismissed.
2. Costs shall be in the cause.

DEMBURE J: ……

Dube Legal Practice, applicant's legal practitioners
Maposa & Ndomene, second respondent's legal practitioners